

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ERIC MILLER, LENFORD COORE, SEAN ALBERT,
and ANTHONY JOHNSON,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DANIEL E. TWOHIG, Tax ID 962141, and POLICE
OFFICER JOHN DOES NUMBERS ONE THROUGH
TEN,

Plaintiff designates Kings
County as the place of trial.

Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 26, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER DANIEL E. TWOHIG, Tax ID 962141, NYPD 73rd
Precinct, 1470 East New York Avenue, Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ERIC MILLER, LENFORD COORE, SEAN ALBERT,
and ANTHONY JOHNSON,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DANIEL E. TWOHIG, Tax ID 962141, and POLICE
OFFICER JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff's ERIC MILLER, LENFORD COORE, SEAN ALBERT, and ANTHONY JOHNSON, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 17, 2019, at approximately 1:00 a.m., plaintiffs ERIC MILLER, LENFORD COORE, SEAN ALBERT, and ANTHONY JOHNSON, while lawfully inside a local deli in the vicinity of 171 Thomas Boyland Avenue, Brooklyn, New York, were subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiffs were maliciously prosecuted and denied the right to due process and a fair trial until all charges against plaintiffs were dismissed and sealed in their entirety on or about October 18, 2019. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ERIC MILLER is a resident of the state of New York.

3. Plaintiff LENFORD COORE is a resident of the state of New York.

4. Plaintiff SEAN ALBERT is a resident of the state of New York.

5. Plaintiff ANTHONY JOHNSON is a resident of the state of New York.

6. NYPD POLICE OFFICER DANIEL E. TWOHIG, Tax ID 962141, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. NYPD POLICE OFFICER DANIEL E. TWOHIG, Tax ID 962141 was at all times relevant herein, assigned to the 79th Precinct.

8. NYPD POLICE OFFICER DANIEL E. TWOHIG, Tax ID 962141, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officer John Does Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On October 17, 2019, at approximately 1:00 a.m., plaintiffs were lawfully present inside a local deli located at 3 Somers Street, Brooklyn, New York, when the defendant police officers unlawfully handcuffed and falsely arrested plaintiffs without probable cause or any legal justification.

19. Plaintiffs were getting food at "Variety Deli" located in the vicinity of 3 Somers Street and 171 Thomas Boyland Avenue.

20. Plaintiffs were in the process of ordering and eating food inside the deli, when the Defendant Officers approached.

21. Defendant Officers did not say anything, but surrounded the four Plaintiffs.

22. Defendant officers then grabbed all of the Plaintiffs and unlawfully handcuffed them.

23. At no time relevant herein did plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse plaintiffs of committing a crime or violating the law in any way.

24. Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

25. At no point in time did plaintiffs resist arrest in any way.

26. Plaintiffs were searched, and no contraband or anything illegal was found on them.

27. Plaintiffs asked Defendants what they were being arrested for, but Defendants refused tell them.

28. Plaintiffs were transported to the 73rd Precinct for processing.

29. While at the 73rd Precinct, Plaintiff Lenford Coore began suffering from heart complications due to stress induced from the arrest, which caused him to have to be transported to a hospital for emergency treatment.

30. While at the 73rd Precinct, Defendants took the other three plaintiffs to interrogation rooms to ask them if they knew anything about drugs or guns in the community.

31. Plaintiffs did not have any information about drugs or guns in the community and they told the Defendant officers that.

32. All Plaintiffs were then transported to Kings County Central Bookings.

33. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that the plaintiffs committed a crime.

34. On October 18, 2019, at 3:00 p.m., after approximately 35 hours in unlawful custody, the Kings County District Attorney's Office declined to prosecute the cases, and released all four plaintiffs with no charges.

35. Plaintiffs never saw a Judge or were formally charged with any crime.

36. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, denying the right to due process and a fair trial, and maliciously prosecuting of the plaintiffs.

37. The unlawful, search, seizure, false arrest and imprisonment, denial of the right to a fair trial, and malicious prosecution of the plaintiffs by the individually named defendants caused the plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

38. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants while acting in concert and within the scope of their authority, caused the plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's rights to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

40. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

41. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine the plaintiffs and, in fact, confined the plaintiffs, and the plaintiffs were conscious of the confinement. In addition, the plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

43. As a direct and proximate result of such acts, defendants deprived the plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, the plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

47. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop and search employed by defendants herein terminated the plaintiff's freedom of movement through means intentionally applied.

49. Defendants lacked probable cause to search the plaintiffs.

50. As a direct and proximate result of such acts, defendants deprived the plaintiffs of their rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, the plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

54. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

56. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

57. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. In withholding/creating false evidence against the plaintiffs ERIC MILLER, LENFORD COORE, SEAN ALBERT, and ANTHONY JOHNSON, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional rights to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

59. As a result of the foregoing, the plaintiffs ERIC MILLER, LENFORD COORE, SEAN ALBERT, and ANTHONY JOHNSON, sustained, inter alia, loss of the rights to

due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, the plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

63. The plaintiffs repeat, reiterate, and reallege, each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to the plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated the plaintiffs statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated the plaintiff's statutory and common law rights as guaranteed to plaintiffs by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The plaintiffs repeat, reiterate, and reallege, each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, the plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

73. The plaintiffs repeat, reiterate, and reallege, each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The defendants that did not physically touch the plaintiffs, but were present when other officers violated the plaintiffs Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiffs, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, the plaintiffs liberties were restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, the plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

81. The plaintiffs repeat, reiterate, and reallege, each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

83. Defendants commenced and continued a criminal proceeding against the plaintiffs.

84. There was actual malice and an absence of probable cause for the criminal proceeding against the plaintiffs and for each of the charges for which they were prosecuted.

85. The prosecution and criminal proceedings terminated in the plaintiffs favor on the aforementioned dates.

86. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate the plaintiffs Fourth Amendment rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

89. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

90. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs ERIC MILLER, LENFORD COORE, SEAN ALBERT, and ANTHONY JOHNSON demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 26, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER DANIEL E. TWOHIG, Tax ID 962141, NYPD 73rd
Precinct, 1470 East New York Avenue, Brooklyn, NY 11212

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
May 26, 2020



CAITLIN ROBIN